

Court No. - 9

Case :- WRIT - C No. - 22449 of 2008

Petitioner :- Paijat Paper Mills Ltd

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,A.N. Singh,Rajan Tripathi

Hon'ble D.S.R. Varma,J.

Hon'ble S.C. Agarwal,J.

Delete the name of Shri H.P. Dube and print the name of Shri Pankaj Kumar Shukla as counsel for respondents.

List after two weeks.

Order Date :- 15.11.2010

vs

Court No. - 9

Case :- WRIT - C No. - 22449 of 2008

Petitioner :- Paijat Paper Mills Ltd

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,A.N. Singh,Rajan Tripathi

Hon'ble D.S.R. Varma,J.

Hon'ble Abhinava Upadhya,J.

It is reported by the counsel for the petitioner that the bunch matters involving the same question are being heard by another Division Bench. Hence, office is directed to list this matter along with Civil Misc.Writ Petition No. 16517 of 2008 (Hasan Steel & Alloyes (Pvt) Ltd. and another Vs. PVVNL and another) with the Bunch matters.

Order Date :- 30.11.2010

SKM

Court No. - 9

Case :- WRIT - C No. - 22449 of 2008

Petitioner :- Paijat Paper Mills Ltd

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,A.N. Singh,Rajan Tripathi

Hon'ble D.S.R. Varma,J.

Hon'ble Abhinava Upadhya,J.

Learned counsel for the petitioner will supply a copy of the writ petition to Shri Pankaj Kumar Shukla.

List in the next cause list.

Order Date :- 18.5.2011

m.a.

Court No. - 9

Case :- WRIT - C No. - 22449 of 2008

Petitioner :- Paijat Paper Mills Ltd

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,A.N. Singh,Rajan Tripathi

Hon'ble D.S.R. Varma,J.

Hon'ble Abhinava Upadhya,J.

The case is passed over on the request of Mr. B.C. Rai, learned counsel for the petitioner.

List in July, 2011.

Order Date :- 25.5.2011

sks-grade iv

Court No. - 3

Case :- WRIT - C No. - 22449 of 2008

Petitioner :- Paijat Paper Mills Ltd

Respondent :- Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

Heard Sri B.C. Rai, learned counsel for the petitioner and Sri Mohan Srivastava, learned Standing Counsel for the State.

This petition relates to the payment of additional security for supply of electricity with the warning that if the payment of security is not made within the stipulated period, appropriate action would be taken in accordance with law. The petitioner has also challenged the provisions contained in clause (1) of Para 4.20 of the Electricity Supply Code, 2005, insofar as it provides 'as and when the distribution licence provides a choice to consumer to opt' being ultra vires the provisions of sub-section (5) of Section 47 of the Electricity Act, 2003.

Learned counsel for the petitioner fairly submits that number of identical matters have already been dismissed by this Court vide judgment dated 21.3.2017 passed in lead case ***Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others)***. He submits that said judgment is already subject matter before the Apex Court and as such in the present petition also similar order can be passed.

Considering the fair submission of learned counsel for the petitioner, the present petition is also dismissed in terms of order dated 21.3.2017 passed by this Court in a bunch of cases lead case Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others).

The writ petition is, accordingly, ***dismissed***.

Order Date :- 14.11.2018

Ajeet